

**CV-24-005034 DIAMOND, KAREN vs AMERICOLD LOGISTICS LLC –
Plaintiff's Motion to Set Aside and Vacate the Judgment Entered in Favor
of Americold Logistics Pursuant to CCP 663 or in the Alternative, Motion
for New Trial – DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Plaintiff's motion is not proper under Code Civ. Proc. § 663, as it fails to seek entry of a "new and different judgment," as envisioned by that statute, and instead seeks to vacate the entry of judgment and return the case for trial. (See, e.g. Forman v. Knapp Press (1985) 173 Cal.App.3d 200, 203-203.) With regard to Plaintiff's alternative request for a new trial, after revisiting the parties' arguments and proffered evidence in connection with the motion for summary judgment in conjunction with the issues raised by Plaintiff herein, the Court concludes that Plaintiff has failed to demonstrate sufficient grounds for relief under Code Civ. Proc. § 657. As to Plaintiff's argument based on UMFs 7, 10, 11, and 12, these merely restated Plaintiff's allegations in the case, which are insufficient to create a material factual dispute on summary judgment. (Code Civ. Proc. § 437c(p)(2).) In addition, Plaintiff's particular allegations regarding Defendant's post-incident liability appear to have been negated by the evidence in support of UMF 13, which was undisputed by Plaintiff. Therefore, the Court again concludes that Defendant met its initial burden on summary judgment herein. The Court further concludes that the defense's evidentiary objections and opposition to Plaintiff's request for judicial notice were well-taken, and its rulings sustaining the objections and denying judicial notice are supported by the law. In reviewing this issue, however, the Court notes that it inadvertently failed to enter an order identifying the specific grounds for its rulings in this regard. Therefore, the Court will sign the defense's proposed order on objections, nunc pro tunc to the date of its ruling on the motion for summary judgment (6-16-26).

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